



New Towns Act (Northern Ireland) 1965 ^{F1}

CHAPTER 13

NEW TOWNS ACT (NORTHERN IRELAND) 1965

GENERAL POWERS OF THE MINISTER AND THE MINISTRY POWER TO...

GENERAL POWERS OF THE MINISTER AND THE MINISTRY

- 1 Power to designate site of new town.
 - 2 New town advisory committees.
 - 3 Power to make surveys, etc.
 - 4 Power to acquire land.
 - 5 Power to dispose of land.
- S. 6 rep. by 1972 NI 17

CONSTITUTION OF NEW TOWN COMMISSIONS

- 7 New town commissions.
- 8 Power of Ministry to make arrangements for the transfer of staff to the service of new town commissions.
S. 9 rep. by 1972 NI 10; SR 1981/96
- 10 Accounts of new town commissions, and audit.
- 11 Annual reports of new town commissions.
- 12 Duty of new town commissions to disclose information to Ministry.
- 13 Power of Ministry to give directions to new town commissions.

Changes to legislation: There are currently no known outstanding effects for the New Towns Act (Northern Ireland) 1965. (See end of Document for details)

DEVELOPMENT FUNCTIONS OF NEW TOWN COMMISSIONS

- 14 Duty of new town commissions to submit development proposals.
- 15 Acquisition of land by new town commissions.
S. 16 rep. by 1981 NI 13
- 17 General powers of new town commissions.
- 18 Borrowing powers of new town commissions.
- 19 Payment of certain contributions, etc., to new town commissions.
- 20 Power of new town commissions to make byelaws.
S. 21 rep. by SRO (NI) 1973/285
- 22 Recovery of possession of premises let by new town commissions.
Ss. 23, 24 rep. by 1985 NI 15
- 25 Extinguishment by new town commissions of public rights of way.
- 26 Contributions by new town commissions towards expenditure in relation to, and for the provision of amenities in, new towns.
- 27 Power of new town commissions to recover certain expenses from district councils.

MUNICIPAL FUNCTIONS OF NEW TOWN COMMISSIONS

- 28 Power of Ministry to confer municipal functions on new town commissions.
- 29 Provisions supplemental to section 28.
- 30 General provisions with respect to municipal functions of new town commissions.
- 31 Financial provisions with respect to municipal functions of new town commissions.
- 32 Committees.
- [32A Exercise of municipal functions through the agency of other bodies.

TERMINATION OF NEW TOWN COMMISSIONS

- 33 Termination and winding up of new town commissions.

SUPPLEMENTAL

- 34 General provisions with respect to the transfer of functions, etc.
- 35 Provisions with respect to the transfer and compensation of staff.
S. 36 rep. by 1977 NI 8

MISCELLANEOUS

- Ss. 37, 38 rep. by 1973 NI 21
- S. 39 rep. by SRO (NI) 1973/285; 1978 NI 20...
- S. 40 rep. by 1978 NI 11
- 41 Power to enter on lands.
- 42 Inquiries and investigations.
- 43 Power of Ministry to make regulations.

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FINANCIAL PROVISIONS

- 44 Power of Ministry to make grants or advances to new town commissions.
- 45 Duty of Ministry to prepare an account of advances and receipts.
- 46 Expenses.

GENERAL

- 47 Power to expand or develop existing towns.
- 48 Interpretation.
- 49 Short title.

SCHEDULES

SCHEDULE 1 — PROCEDURE WITH RESPECT TO ORDERS UNDER SECTION 1 AND MUNICIPAL FUNCTIONS ORDERS

PART I — PROVISIONS AS TO ORDERS UNDER SECTION 1

- 1 Where the Minister proposes to make an order under section 1, he shall with the...
- 2 There shall be attached to every draft order prepared under paragraph 1 a statement indicating...
- 3 When a draft order has been prepared under paragraph 1, the Minister shall, before making...
- 4 As soon as may be after an order has been made under section 1, the...
Para. 5 rep. by 1968 c. 33 (NI

PART II — PROVISIONS AS TO MUNICIPAL FUNCTIONS ORDERS

- 1 Where the Ministry proposes to make a municipal functions order it shall prepare a draft...
- 2 As soon as may be after a municipal functions order has been made the Ministry...
- 3 For the purposes of this Part— (a) paragraphs 3(c) and 4(a)...

SCHEDULE 2 — MODIFICATIONS OF SCHEDULE 5 TO THE ROADS ACT (NORTHERN IRELAND) 1948 FOR THE PURPOSES OF SECTION 4

- 1 References to the Ministry or to the authority shall be construed as references to the...
- 2 References to the said Schedule 5 shall be construed as references to that Schedule as...
- 3 The expressions “land” and “estate” shall have the meanings respectively assigned to them by subsections...
- 4 Paragraph 1 shall be omitted.
- 5 In paragraph 2— (a) sub-paragraph (1) shall be omitted; (b) in sub-paragraph (2), the reference...
- 6 In paragraph 3— (a) in sub-paragraph (1) the words “, where the authority is a...
- 7 In paragraph 4(b), the two references to the said Act of 1948 shall...
- 8 In paragraph 5— (a) in the first sub-paragraph, the words from the beginning of head...

- 9 In paragraph 10, the words from the beginning of head (a) to the...
10 For the purposes of a vesting order in respect of an estate in land,
being...

— Schedule 3 rep. by 1971 c. 23 (NI); 1972 NI 17

SCHEDULE 4 — NEW TOWN COMMISSIONS

Constitution

- 1 A new town commission (in this Schedule referred to as “the
commission”) shall be...
2 Section 19 of the Interpretation Act (Northern Ireland) 1954 shall apply
to the commission, but...
3 The commission shall consist of not more than nine or less than five
members appointed...
4 The Minister shall appoint one of the members of the commission to be
Chairman of...
5 A member of the commission, the Chairman or Vice-Chairman may, by
notice in writing under...
6 Where the Minister is satisfied that a member of the commission— (a)
has been adjudged...
7 If the Chairman or Vice-Chairman ceases to be a member of the
commission he shall...
8 A person who ceases to be a member of the commission or to be
Chairman...

Remuneration

- 9 The commission shall pay to persons holding the office of Chairman,
Vice-Chairman or member of...

Proceedings

- 10 The Ministry may give directions to the commission as to their quorum
and proceedings, and...
11 The validity of the proceedings of the commission shall not be affected
by any vacancy...

Officers and Servants

- 12 The commission— (a) shall, with the approval of the Ministry, appoint a
general manager on...

Instruments and Contracts

- 13 The fixing of the seal of the commission shall be authenticated by the
signature of—...
14 Any contract or instrument which if made or executed by a person not
being a...

SCHEDULE 5 — MODIFICATIONS OF SECTION 22(2) OF AND SCHEDULE 2 TO THE LOCAL GOVERNMENT ACT (NORTHERN IRELAND) 1934 FOR THE PURPOSES OF SECTION 15

- 1 References to a vesting order made under section 22 of the Local Government Act (Northern...
- 2 References to the local authority shall be construed as references to the new town commission.
- 3 References to the Ministry within the meaning of that Act shall be construed as references...
- 4 Subject to paragraph 1, references to the said section 22 or to Schedule 2 to...
- 5 In the first paragraph of article 6 of the said Schedule 2, the reference to...
- 6 In article 11(1) of that Schedule, the reference to the clerk of the local authority...
- 7 In article 27 of that Schedule, the reference to the area of the local authority...
- 8 In article 28 of that Schedule, for the definition of “land” there shall be substituted...
- 9 In that Schedule, “estate” shall have the meaning assigned to it by section 45(2) of...
- 10 Where under subsection (3) of section 15 an application is made to the Ministry for...

SCHEDULE 6 — PROVISIONS CONSEQUENTIAL ON THE TRANSFER OF FUNCTIONS

Definitions

- 1 In this Schedule— “the date of transfer” means, in relation to any functions, the date...

Construction of transferred provisions

- 2 In the construction and for the purposes of any transferred provision passed before the date...

Transfer of property

- 3 (1) All property, whether real or personal (including choses-in-action), which immediately before the date of...

Transfer of liabilities

- 4 (1) Every debt and other liability (including stock and mortgage debts and also including unliquidated...

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Preservation of continuing contracts

- 5 Every bond, guarantee, or other security of a continuing character made or given or deemed...

Continuance of byelaws, rules and regulations

- 6 Every byelaw, rule and regulation lawfully made or deemed to have been made by the...

Continuance of resolutions etc.

- 7 Every resolution passed or deemed to have been passed, order made or deemed to have...

Continuance of pending legal proceedings

- 8 In every action, suit, prosecution or other proceeding which stood pending immediately before the date...

Collection of rates

- 9 (1) All rates which immediately before the date of transfer were due and payable to...

Admissibility in evidence of books

- 10 (1) All books and other documents directed or authorised by or under any transferred provision...

Audit of accounts

- 11 (1) The accounts of all receipts and payments of the transferor and of committees thereof...

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